

ORIGINAL

(S E R V E D)
(JUNE 20, 1995)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

June 20, 1995

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

APPROVAL OF STIPULATION RELATED TO JUNE 12, 1995, ORDER

Respondents Sea-Land Service, Inc. ("Sea-Land") and American President Lines, Ltd. ("APL") filed a joint Stipulation dated June 19, 1995, related to the presiding officer's Order dated June 12, 1995, which granted a limited amendment of the April 20, 1990, Protective Order. Sea-Land and APL state that they were able, with the guidance provided by the presiding officer's ruling, to reach an agreement which obviated the need for any appeal of that ruling. That agreement was based on the following agreed terms and conditions.

1. Sea-Land has agreed with APL that redacted copies of APL's briefs (as furnished by counsel for APL to counsel for Sea-Land on June 12, 1995) may be reviewed by counsel for Matson Navigation Co. in the following manner:

- a. Redacted versions of APL's briefs may be reviewed by no more than two inside counsel for Matson;
- b. Redacted versions of the briefs may be reviewed by outside counsel for Matson without limitation as to number of counsel;
- c. Such review shall be completed within forty-five (45) days; and
- d. The briefs shall be returned when the review is completed, but in any event the briefs and all copies thereof shall be returned by Matson to counsel for APL within forty-five (45) days of the date of their receipt.

2. Each attorney reviewing the briefs on behalf of Matson shall sign a copy of the following statement, which shall be submitted for filing with the Commission in this docket:

With respect to the briefs furnished to me by counsel for American President Lines pursuant to the June 12, 1995 Order of the Administrative Law Judge in Federal Maritime Commission Docket No. 89-26, I agree (i) that I will use such briefs solely for purposes of the due diligence review being conducted by Matson Navigation Company pursuant to its April 27, 1995 Memorandum of Understanding with APL; (ii) that I will not disclose, either in the context of the due diligence review or for any other purpose, the content of such briefs to anyone not authorized to receive them by this Order (in accordance with the June 19, 1995 Stipulation) or by the April 20, 1990 Protective Order in that docket; and (iii) that I will return such briefs to counsel for APL within forty-five (45) days of receipt and will not retain a copy of any portion thereof.

The agreement between Sea-Land and APL, as evidenced by the foregoing terms and conditions, is reasonable and will end any dispute as to the issue of review of the APL briefs

by Matson. In the circumstances the request of counsel for Sea-Land and APL that the presiding officer approve the foregoing Stipulation, which is based on agreed terms and conditions, will be approved.

IT IS ORDERED: The Stipulation dated June 19, 1995, between Sea-Land Service, Inc. and American President Lines, Ltd., pertaining to the review of APL briefs by Matson Navigation Company, is approved.


Frederick M. Dolan, Jr.
Administrative Law Judge